

IPRA Request — ALPR Records — Alamogordo, NM (MuckRock version)

For filing via MuckRock. Terse, no letter framing. MuckRock handles all correspondence.

To Whom It May Concern:

Pursuant to New Mexico's Inspection of Public Records Act (NMSA 1978 §§ 14-2-1 et seq.), I request the following records related to the City of Alamogordo and the Alamogordo Police Department's acquisition and use of automated license plate reader (ALPR) technology, including any system manufactured, sold, or operated by Flock Safety, Vigilant Solutions, Rekor Systems, Motorola Vigilant, or any other ALPR vendor, for the period of January 1, 2023, through the date this request is processed.

This request is submitted by a New Mexico resident and concerns the conduct of public business in this state. The records I request are not exempt from disclosure under § 14-2-1(A) or any other provision of New Mexico law. To the extent any portion of this request is denied or redacted, please provide a written explanation citing the specific statutory exemption relied upon, as required by § 14-2-11.

Please provide copies of the following records. Where records are maintained in an electronic database, I request an export in a machine-readable format (CSV, Excel, or PDF) pursuant to § 14-2-8(B).

RECORDS REQUESTED

RECORDS REQUESTED

1. CONTRACTS AND AGREEMENTS

- All contracts, agreements, memoranda of understanding (MOUs), data-sharing agreements, license agreements, statements of work, and other binding documents between the City of Alamogordo (or APD) and any ALPR vendor, including but not limited to Flock Safety, Inc.
- All amendments, addenda, exhibits, side letters, or extensions of the contracts identified in (1)(a), executed or in effect at any time during the requested period.
- All procurement documents, requests for proposals, requests for quotes, bid responses, evaluation documents, and award notices relating to the selection or acquisition of any ALPR system.

2. POLICIES, PROCEDURES, AND TRAINING

All policies, procedure manuals, directives, standard operating procedures, training materials, and internal guidance documents, in effect or revised during the requested period, that describe:

- Who within the City or APD is authorized to search, query, or otherwise access ALPR data — including any specific roles, ranks, units, or individuals granted access.
- The process for granting, revoking, monitoring, or auditing such access, including any controls on third-party access.
- The circumstances under which a license plate may be searched in ALPR data, including any required criteria, approvals, justifications, or supervisor sign-offs.

d. The circumstances under which an alert, hot-list entry, or notification may be created for a specific license plate, including the criteria, approvals, and retention period for any such list.

3. DATA-SHARING AND PARTNER AGENCIES

a. The names of all law-enforcement agencies (local, state, federal, tribal, or international) and all non-law-enforcement entities (including homeowners associations, private businesses, and individuals) that have been granted access to ALPR data collected by or on behalf of the City of Alamogordo.

b. All agreements, MOUs, or other documents governing such data sharing, including any terms on data retention, allowed use, prohibited use, auditing, and termination.

c. The total number of ALPR data-sharing requests received from and fulfilled to other agencies, by agency, for each year of the requested period.

4. DATA RETENTION, STORAGE, AND DELETION

a. The retention period for ALPR data, both for data not associated with an active investigation ("non-hit" data) and for data associated with an investigation or alert.

b. The location(s) where ALPR data is stored (on-premises, vendor cloud, third-party cloud), and the jurisdiction(s) in which that storage resides.

c. All policies, procedures, and audit logs relating to the deletion or purging of ALPR data at the end of its retention period.

5. DEPLOYMENT, LOCATIONS, AND USE

a. The total number of ALPR cameras currently operated by, for, or on behalf of the City of Alamogordo, and the general location of each (intersection, address, or geographic area).

b. The number of license plate scans performed by ALPR cameras operated by or for the City, by month, for the requested period, including any breakdown by camera location.

c. The number of "hits" (matches against hot lists or alerts) generated by the ALPR system, by month, for the requested period.

6. COSTS, FUNDING, AND BUDGET

a. The total amount paid by the City of Alamogordo to any ALPR vendor, by year, for the requested period, including any line items in the City's annual budget relating to ALPRs.

b. The source of funds used to pay for the ALPR system (general fund, opioid settlement funds, grant funds, or any other source), and any restrictions on the use of those funds.

c. All invoices, receipts, and payment records relating to the ALPR system.

7. TERMINATION AND CANCELLATION

a. The full text of any termination, cancellation, or "no-cause" clause in the City's ALPR contract(s), including any required notice period, termination fee, data-destruction obligations, and post-termination access rights.

[illegible]

■■■■■■■■■■

FEES AND TIMELINE

[REDACTED]

